



CHAPTER 68

An Act to provide for the registration and judicial investigation of certain restrictive trading agreements, and for the prohibition of such agreements when found contrary to the public interest; to prohibit the collective enforcement of conditions regulating the resale price of goods, and to make further provision for the individual enforcement of such conditions by legal proceedings; to amend the Monopolies and Restrictive Practices Acts, 1948 and 1953; to provide for the appointment of additional judges of the High Court and of the Court of Session; and for other purposes connected with the matters aforesaid.

[2nd August, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

REGISTRATION AND JUDICIAL INVESTIGATION OF RESTRICTIVE
TRADING AGREEMENTS*Establishment of Registrar and Restrictive Practices Court*

1.—(1) For the purposes of this Part of this Act, Her Majesty may appoint an officer to be known as the Registrar of Restrictive Trading Agreements (in this Act referred to as “the Registrar”), who shall hold office during Her Majesty's pleasure.

Appointment
and functions
of Registrar.

(2) The Registrar shall be charged with the duty of preparing, compiling and maintaining a register of agreements which are subject to registration under this Part of this Act, and of taking proceedings before the Court (subject to such directions as may be given by the Board of Trade with respect to the

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order in which such proceedings are to be taken) in respect of the agreements of which particulars are from time to time entered or filed in the register.

(3) The Registrar may consult the Law Officers of the Crown through the Treasury Solicitor on any appropriate matter of doubt or difficulty arising in the execution of his duties.

(4) The Registrar may appoint such assistant registrars and such other officers and servants as he may, with the consent of the Treasury as to numbers and conditions of service, determine.

(5) The Registrar shall have an official seal for the authentication of documents required for purposes of this Part of this Act; and the Documentary Evidence Act, 1868, shall have effect as if the Registrar were included in the first column of the Schedule to that Act, as if the Registrar and any assistant registrar or other officer authorised to act on behalf of the Registrar were mentioned in the second column of that Schedule, and as if the regulations referred to in that Act included any document issued by the Registrar.

(6) There shall be paid to any person holding the office of Registrar such salary or other emoluments as may be determined by the Treasury.

(7) In the case of any such holder of the office of Registrar as may be determined by the Treasury, there shall be paid such pension, allowance or gratuity to or in respect of him on his retirement or death, or such contributions or other payments towards provision for such a pension, allowance or gratuity, as may be so determined.

(8) As soon as may be after the making of any determination under the last foregoing subsection, the Treasury shall lay before each House of Parliament a statement of the amount of the pension, allowance or gratuity or contributions or other payments towards pension, allowance or gratuity, as the case may be, payable in pursuance of the determination.

**Establishment
of Restrictive
Practices
Court.**

2.—(1) For the purposes of this Part of this Act there shall be established a Court to be known as the Restrictive Practices Court (in this Part of this Act referred to as “the Court”).

(2) Subject to any order in force under section five of this Act, the Court shall consist of five judges nominated under section three of this Act, of whom one, to be selected by the Lord Chancellor, shall be President of the Court, and not more than ten other members appointed under section four of this Act.

(3) The Court shall be a superior court of record and have an official seal which shall be judicially noticed.

(4) The supplementary provisions set out in the Schedule to this Act shall have effect with respect to the proceedings of the Court.

(5) The Lord Chancellor may appoint such officers and servants of the Court as he may, with the approval of the Treasury as to numbers and conditions of service, determine; and the Superannuation Acts, 1834 to 1950, shall have effect as if service as an officer or servant of the Court were service in an established capacity in the permanent civil service of the State in an appointment held directly from the Crown.

3.—(1) Subject to any order in force under section five of this Act, the following judges shall be members of the Court, that is to say:—

Nomination
of judges as
members of
Court.

- (a) three puisne judges of the High Court nominated from time to time by the Lord Chancellor;
- (b) one judge of the Court of Session nominated from time to time by the Lord President of that Court;
- (c) one judge of the Supreme Court of Northern Ireland nominated from time to time by the Lord Chief Justice of Northern Ireland.

(2) A judge of any court who is nominated under this section shall not be required to sit in any place outside the jurisdiction of that court, and shall be required to perform his duties as a judge of that court only when his attendance on the Restrictive Practices Court is not required.

(3) In the case of the temporary absence or inability to act of a judge nominated under this section, the Lord Chancellor, the Lord President of the Court of Session, or the Lord Chief Justice of Northern Ireland, as the case may be, may nominate another judge of the same court to act temporarily in his place, and a judge so nominated shall, when so acting, have all the functions of the judge in whose place he acts.

(4) No judge shall be nominated under this section except with his consent.

4.—(1) The members of the Court other than judges nominated under the last foregoing section may be appointed by Her Majesty on the recommendation of the Lord Chancellor, and any person recommended for appointment as such a member shall be a person appearing to the Lord Chancellor to be qualified by virtue of his knowledge of or experience in industry, commerce or public affairs.

Appointment
of other
members of
Court.

(2) A member of the Court appointed under the foregoing subsection (in this section referred to as an appointed member) shall hold office for such period not less than three years as may be determined at the time of his appointment, and shall be eligible for reappointment:

Provided that—

- (a) an appointed member may at any time by notice in writing to the Lord Chancellor resign his office;

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(b) the Lord Chancellor may, if he thinks fit, remove any appointed member for inability or misbehaviour, or on the ground of any employment or interest which appears to the Lord Chancellor incompatible with the functions of a member of the Court.

(3) In the case of the temporary absence or inability to act of an appointed member, the Lord Chancellor may appoint a temporary member, being a person appearing to him to be qualified as provided in subsection (1) of this section, to act in place of that member; and a temporary member shall, when so acting, have all the functions of an appointed member.

(4) There may be paid to the appointed members and to any temporary member such remuneration as the Lord Chancellor may, with the approval of the Treasury, determine.

(5) Subsections (7) and (8) of section one of this Act shall apply in relation to the office of appointed member as they apply in relation to the office of Registrar, but as if for references to the Treasury there were substituted references, in the said subsection (7) to the Lord Chancellor acting with the approval of the Treasury, and in the said subsection (8) to the Lord Chancellor.

Provision for
increasing
number of
members of
Court.

5.—(1) The Lord Chancellor may—

(a) after consultation with the Lord President of the Court of Session and the Lord Chief Justice of Northern Ireland, by order increase the number of judges of the High Court, the Court of Session or the Supreme Court of Northern Ireland to be nominated under section three of this Act as members of the Court;

(b) with the approval of the Treasury, by order increase the maximum number of members of the Court to be appointed under section four of this Act.

(2) The power of the Lord Chancellor to make orders under this section shall be exercisable by statutory instrument; and an order under this section shall be of no effect until it is approved by resolution of each House of Parliament.

Registration of Agreements

Agreements to
which Part I
applies.

6.—(1) Subject to the provisions of the two next following sections, this Part of this Act applies to any agreement between two or more persons carrying on business within the United Kingdom in the production or supply of goods, or in the application to goods of any process of manufacture, whether with or

without other parties, being an agreement under which restrictions are accepted by two or more parties in respect of the following matters, that is to say:—

- (a) the prices to be charged, quoted or paid for goods supplied, offered or acquired, or for the application of any process of manufacture to goods;
- (b) the terms or conditions on or subject to which goods are to be supplied or acquired or any such process is to be applied to goods;
- (c) the quantities or descriptions of goods to be produced, supplied or acquired;
- (d) the processes of manufacture to be applied to any goods, or the quantities or descriptions of goods to which any such process is to be applied; or
- (e) the persons or classes of persons to, for or from whom, or the areas or places in or from which, goods are to be supplied or acquired, or any such process applied.

(2) For the purposes of the foregoing subsection it is immaterial whether any restrictions accepted by parties to an agreement relate to the same or different matters specified in that subsection, or have the same or different effect in relation to any matter so specified, and whether the parties accepting any restrictions carry on the same class or different classes of business.

(3) In this Part of this Act “agreement” includes any agreement or arrangement, whether or not it is or is intended to be enforceable (apart from any provision of this Act) by legal proceedings, and references in this Part of this Act to restrictions accepted under an agreement shall be construed accordingly; and “restriction” includes any negative obligation, whether express or implied and whether absolute or not.

(4) For the purposes of this Part of this Act an agreement which confers privileges or benefits only upon such parties as comply with conditions as to any such matters as are described in paragraphs (a) to (e) of subsection (1) of this section, or imposes obligations upon parties who do not comply with such conditions, shall be treated as an agreement under which restrictions are accepted by each of the parties in respect of those matters.

(5) Without prejudice to the last foregoing subsection, an obligation on the part of any party to an agreement to make payments calculated by reference—

- (a) to the quantity of goods produced or supplied by him, or to which any process of manufacture is applied by him; or
- (b) to the quantity of materials acquired or used by him for the purpose of or in the production of any goods or the application of any such process to goods,

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—cont.

being payments calculated, or calculated at an increased rate, in respect of quantities of goods or materials exceeding any quantity specified in or ascertained in accordance with the agreement, shall be treated for the purposes of this Part of this Act as a restriction in respect of the quantities of those goods to be produced or supplied, or to which that process is to be applied.

(6) This Part of this Act shall apply in relation to any agreement made by a trade association as if the agreement were made between all persons who are members of the association or are represented thereon by such members and, where any restriction is accepted thereunder on the part of the association, as if the like restriction were accepted by each of those persons.

(7) Where specific recommendations (whether express or implied) are made by or on behalf of a trade association to its members or to any class of its members, as to the action to be taken or not taken by them in relation to any particular class of goods or process of manufacture in respect of any matter described in the said subsection (1), this Part of this Act shall apply in relation to the agreement for the constitution of the association notwithstanding any provision to the contrary therein, as if it contained a term by which each such member, and any person represented on the association by any such member, agreed to comply with those recommendations and any subsequent recommendations made to them by or on behalf of the association as to the action to be taken by them in relation to the same class of goods or process of manufacture and in respect of the same matter.

(8) In this section “trade association” means a body of persons (whether incorporated or not) which is formed for the purpose of furthering the trade interests of its members, or of persons represented by its members; and for the purposes of this section, two or more persons being inter-connected bodies corporate or individuals carrying on business in partnership with each other shall be treated as a single person.

Restrictions
to be
disregarded.

7.—(1) In determining whether an agreement to which iron and steel producers as defined by the Iron and Steel Act, 1953, are party, whether with or without other parties, is an agreement to which this part of this Act applies, no account shall be taken of any term whether express or implied which has been approved by the Iron and Steel Board and by the Board of Trade—

(a) by which those producers agree to acquire raw materials or other iron and steel products as so defined exclusively from a person who undertakes as a common service for the iron and steel industry the importation of

those materials or products, or the distribution of those materials or products when imported, or from any person nominated by such a person ; or

(b) by which any such person agrees to supply such materials or products exclusively to those producers.

(2) In determining whether an agreement for the supply of goods or for the application of any process of manufacture to goods is an agreement to which this Part of this Act applies, no account shall be taken of any term which relates exclusively to the goods supplied, or to which the process is applied, in pursuance of the agreement :

Provided that where any such restrictions as are described in subsection (1) of section six of this Act are accepted as between two or more persons by whom, or two or more persons to or for whom, goods are to be supplied, or the process applied, in pursuance of the agreement, this subsection shall not apply to those restrictions unless accepted in pursuance of a previous agreement in respect of which particulars have been registered under this Part of this Act.

(3) In determining whether an agreement is an agreement to which this Part of this Act applies, no account shall be taken of any term by which the parties or any of them agree to comply with or apply, in respect of the production of any goods or the application to goods of any process of manufacture, standards of dimensions, design or quality for the time being approved by the British Standards Institution.

(4) In determining whether an agreement is an agreement to which this Part of this Act applies, no account shall be taken of any restriction which affects or otherwise relates to the workmen to be employed or not employed by any person, or as to the remuneration, conditions of employment, hours of work or working conditions of such workmen, and for the purposes of this subsection "workmen" has the same meaning as in the Industrial Courts Act, 1919.

8.—(1) This Part of this Act does not apply to any agreement which is expressly authorised by any enactment, or by any scheme, order or other instrument made under any enactment. Excepted agreements.

(2) This Part of this Act does not apply to any agreement which constitutes or forms part of a scheme certified by the Board of Trade under Part XXIII of the Income Tax Act, 1952 (which relates to contributions and payments under schemes for rationalising industry).

(3) This Part of this Act does not apply to any agreement for the supply of goods between two persons, neither of whom is a trade association within the meaning of section six of this Act.

PART I
—cont.

being an agreement to which no other person is party and under which no such restrictions as are described in subsection (1) of section six of this Act are accepted other than restrictions accepted—

- (a) by the party supplying the goods, in respect of the supply of goods of the same description to other persons ; or
- (b) by the party acquiring the goods, in respect of the sale, or acquisition for sale, of other goods of the same description.

(4) This Part of this Act does not apply to any licence granted by the proprietor or any licensee of a patent or registered design, or by a person who has applied for a patent or for the registration of a design, to any assignment of a patent or registered design, or of the right to apply for a patent or for the registration of a design, or to any agreement for such a licence or assignment, being a licence, assignment or agreement under which no such restrictions as are described in subsection (1) of section six of this Act are accepted except in respect of—

- (a) the invention to which the patent or application for a patent relates, or articles made by the use of that invention ; or
- (b) articles in respect of which the design is or is proposed to be registered and to which it is applied,

as the case may be.

(5) This Part of this Act does not apply to any agreement between two persons, neither of whom is a trade association within the meaning of section six of this Act, for the exchange of information relating to the operation of processes of manufacture (whether patented or not), being an agreement to which no other person is party and under which no such restrictions as are described in subsection (1) of section six of this Act are accepted except in respect of the descriptions of goods to be produced by those processes or to which those processes are to be applied.

(6) This Part of this Act does not apply to any agreement made in accordance with regulations approved by the Board of Trade under section thirty-seven of the Trade Marks Act, 1938 (which makes provision as to certification trade marks) authorising the use of such a trade mark, being an agreement under which no such restrictions as are described in subsection (1) of section six of this Act are accepted, other than restrictions permitted by the said regulations.

(7) This Part of this Act does not apply to any agreement between the registered proprietor of a trade mark (other than

a certification trade mark) and a person authorised by the agreement to use the mark subject to registration as a registered user under section twenty-eight of the said Act of 1938 (which makes provision as to registered users), being an agreement under which no such restrictions as aforesaid are accepted except in respect of the descriptions of goods bearing the mark which are to be produced or supplied or the processes of manufacture to be applied to such goods or to goods to which the mark is to be applied.

(8) This Part of this Act does not apply to an agreement in the case of which all such restrictions as are described in subsection (1) of section six of this Act relate exclusively—

- (a) to the supply of goods by export from the United Kingdom ;
- (b) to the production of goods, or the application of any process of manufacture to goods, outside the United Kingdom ;
- (c) to the acquisition of goods to be delivered outside the United Kingdom and not imported into the United Kingdom for entry for home use ; or
- (d) to the supply of goods to be delivered outside the United Kingdom otherwise than by export from the United Kingdom ;

and subsection (7) of section six of this Act shall not apply in relation to recommendations relating exclusively to such matters as aforesaid.

(9) For the purposes of this and the last foregoing section two or more persons being inter-connected bodies corporate or individuals carrying on business in partnership with each other shall be treated as a single person ; and any reference in this section to such restrictions as are described in subsection (1) of section six of this Act shall be construed, in relation to any agreement, as not including references to restrictions of which, by virtue of any provision of section seven of this Act, account cannot be taken in determining whether the agreement is an agreement to which this Part of this Act applies, or of restrictions accepted by any term of which account cannot be so taken.

9.—(1) Subject to the provisions of this section, every agreement to which this Part of this Act applies shall be subject to registration thereunder.

(2) The foregoing subsection shall come into force on such date as the Board of Trade may by order appoint, and different dates may be appointed under this subsection in relation to agreements of different classes.

PART I
—cont.

(3) An order under this section may describe the classes of agreements to which it applies by reference to any one or more of the following matters, that is to say—

- (a) the trade or industry in which the persons by whom restrictions are accepted are engaged, or the class of business carried on by such persons ;
- (b) the character of the restrictions accepted, or the goods, processes, transactions, areas or places affected by such restrictions ; or
- (c) any other features which appear to the Board to be expedient.

(4) The power of the Board of Trade to make orders under this section shall be exercisable by statutory instrument ; and an order under this section shall be of no effect until it is approved by resolution of each House of Parliament.

**Particulars to
be furnished
for
registration.**

10.—(1) Within the period specified in this section the following particulars shall be furnished to the Registrar in respect of every agreement which is subject to registration under this Part of this Act, that is to say—

- (a) the names of the persons who are parties to the agreement ; and
- (b) the whole of the terms of the agreement, whether or not relating to any such restrictions as are described in subsection (1) of section six of this Act.

(2) Subject to the provisions of subsection (3) of this section, the duty to furnish particulars under this section in respect of an agreement which at any time is subject to registration under this Part of this Act shall not be affected by any subsequent variation or determination of the agreement ; and if at any time after an agreement has become subject to registration as aforesaid that agreement is varied (whether in respect of the parties or in respect of the terms) or determined otherwise than by effluxion of time, particulars of the variation or determination shall be furnished to the Registrar within the period specified in this section.

(3) Where any agreement becomes subject to registration under this Part of this Act by virtue of an order made under section nine of this Act after the making of the agreement—

- (a) if, before the expiration of the period within which, apart from this subsection, particulars would be required to be furnished in respect of the agreement under this section, and before particulars have been so furnished, the agreement is determined (whether by effluxion of time or otherwise), subsections (1) and (2) of this section shall cease to apply to that agreement ;

(b) if, before the expiration of the said period and before particulars have been furnished in respect of the agreement, the agreement is varied, the particulars to be furnished under subsection (1) of this section shall be particulars of the agreement as varied, and subsection (2) of this section shall not apply in relation to the variation.

(4) The particulars to be furnished under this section in respect of an agreement shall be furnished—

(a) in so far as the agreement, or any variation or determination of the agreement, is made by an instrument in writing, by the production of the original or a true copy of that instrument ;

(b) in so far as the agreement, or any variation or determination of the agreement, is not so made, by the production of a memorandum in writing signed by the person by whom the particulars are furnished.

(5) The particulars to be furnished under this section in respect of an agreement shall be furnished within such period, beginning with the date on which the agreement is made or becomes subject to registration under this Part of this Act, whichever is the later, or with the date of the variation or determination of the agreement, as the case may be, as may be prescribed by the order of the Board of Trade under section nine of this Act by virtue of which the agreement is subject to registration.

(6) The particulars required by this section may be furnished by or on behalf of any person who is party to the agreement or, as the case may be, was party thereto immediately before its determination, and where such particulars are duly furnished by or on behalf of any such person the provisions of this section shall be deemed to be complied with on the part of all such persons.

(7) In relation to an agreement to which this Part of this Act applies by virtue of subsection (6) of section six of this Act as if it were an agreement made between members of a trade association, or persons represented on the association by such members, references in this section to the parties to the agreement include references to those members or persons ; and in relation to an agreement in which a term is implied by virtue of subsection (7) of the said section six, the reference in this section to the terms of the agreement includes a reference to that term, and references in this section to an agreement shall be construed accordingly.

11.—(1) The register for the purposes of this Part of this Act shall be kept by the Registrar at such premises within the United Kingdom as the Registrar may determine.

General
provisions as
to the register.

PART I
—cont.

(2) The register shall be kept in such form as the Registrar thinks fit, and the Registrar shall enter or file therein such particulars as may be prescribed by regulations made under section nineteen of this Act of agreements subject to registration under this Part of this Act, being particulars duly furnished to him under this Part of this Act by parties thereto, or documents or information which he is authorised under section eighteen of this Act to treat as particulars so furnished.

(3) Regulations made as aforesaid shall provide for the maintenance of a special section of the register, and for the entry or filing in that section of such particulars as the Board of Trade may direct, being—

(a) particulars containing information the publication of which would in the opinion of the Board be contrary to the public interest;

(b) particulars containing information as to any secret process of manufacture or as to the presence, absence or situation of any mineral or other deposits or as to any other similar matter, being information the publication of which, in the opinion of the Board would substantially damage the legitimate business interests of any person.

(4) The register, other than the special section, shall be open to public inspection during such hours and subject to payment of such fee as may be prescribed by regulations made under section nineteen of this Act.

(5) Any person may, upon payment of such fee as may be prescribed by regulations made as aforesaid, require the Registrar to supply to him a copy of or extract from any particulars entered or filed in the register, other than the special section, certified by the Registrar to be a true copy or extract.

(6) No process for compelling the production of the register or of any other document kept by the Registrar shall issue from any court except with the leave of the court, and any such process if issued shall bear a statement that it is issued with the leave of the court.

(7) A copy of or extract from any document entered or filed in the register, certified under the hand of the Registrar or any assistant registrar or other officer authorised to act on behalf of the Registrar (whose official position it shall not be necessary to prove), shall in all legal proceedings be admissible in evidence as of equal validity with the original.

12.—(1) The Board of Trade may, upon the representation of the Registrar, give directions authorising him to remove from the register particulars of such agreements of which particulars are for the time being entered therein as appear to the Board to be of no substantial economic significance.

Power to
remove
insignificant
agreements
from the
register.

(2) The removal of particulars of an agreement in pursuance of directions under this section shall not affect the operation in relation to the agreement of subsection (2) of section ten of this Act; and where any such agreement is varied as mentioned in that subsection—

- (a) the particulars to be furnished thereunder shall include all such particulars as would be required in the case of an original agreement in the terms of the agreement as varied;
- (b) the directions under this section shall cease to have effect, but without prejudice to the power of the Board of Trade to give further directions thereunder in respect of the agreement as varied.

(3) As soon as practicable after giving directions under this section the Board of Trade shall lay before each House of Parliament a statement containing particulars of the agreements to which the directions relate.

13.—(1) The High Court may, on the application of any person aggrieved, order the register to be rectified by the variation or removal of particulars included therein in respect of any agreement. Rectification of the register, etc.

(2) The High Court may, on the application of any person party to an agreement, or on the application of the Registrar in respect of any agreement of which particulars have been furnished to him under this Part of this Act, declare whether or not the agreement is one to which this Part of this Act applies, and if so whether or not it is subject to registration under section nine of this Act.

(3) Where application is made under subsection (2) of this section by any party to an agreement before the expiration of the period within which, if the agreement is subject to registration under this Part of this Act, particulars are required to be furnished under section ten of this Act, then—

- (a) if particulars of the agreement have not been so furnished before the commencement of the proceedings, the said period shall be extended by a period equal to the period during which the proceedings and any appeal therein are pending, and such further period, if any, as the court may direct; and
- (b) if particulars have been so furnished, the Registrar shall not enter or file particulars of the agreement in the register during the period during which the proceedings and any appeal therein are pending.

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—cont.

(4) Notice of any application to the court under this section shall be served, in accordance with rules of court—

(a) in the case of an application by a person other than the Registrar, on the Registrar ;

(b) in the case of an application by the Registrar, on the parties to the agreement or such of them as may be prescribed or determined by or under the rules ;

and any party on whom notice is so served shall be entitled, in accordance with such rules, to appear and be heard on the application.

(5) In the application of this section to Scotland and Northern Ireland respectively, for any reference to the High Court there shall be substituted a reference to the Court of Session or the High Court of Northern Ireland.

Supplementary provisions as to registration

Power of
Registrar
to obtain
information.

14.—(1) If the Registrar has reasonable cause to believe that any person being—

(a) a person carrying on within the United Kingdom any such business as is described in subsection (1) of section six of this Act ; or

(b) a trade association within the meaning of the said section six the members of which consist of or include persons carrying on business as aforesaid or representatives of such persons

is or may be party to an agreement subject to registration under this Part of this Act, he may give notice to that person requiring him, within such time as may be specified in the notice, to notify the Registrar whether he is party to any agreement relating to any such matters as are described in paragraphs (a) to (e) of the said subsection (1), and if so to furnish to the Registrar such particulars as may be so specified of that agreement.

(2) The Registrar may give notice to any person by whom particulars are furnished under section ten of this Act in respect of an agreement, or to any other person being party to the agreement, requiring him to furnish such further documents or information in his possession or control as the Registrar considers expedient for the purposes of or in connection with the registration of the agreement.

(3) In the case of any such trade association as is mentioned in paragraph (b) of subsection (1) of this section, a notice under that subsection may be given by the Registrar either to the association or to the secretary, manager or other similar officer of the association ; and for the purposes of this section any

such association shall be treated as party to any agreement to which members of the association, or persons represented on the association by such members, are parties as such.

PART I
—cont.

15.—(1) In any case in which the Registrar has given notice to any person under section fourteen of this Act, the High Court may on the application of the Registrar order that person to attend and be examined on oath in accordance with the following provisions of this section concerning the matters in respect of which the Registrar has given notice to him as aforesaid.

Power of
High Court
to order
examination
on oath.

(2) Where an order is made under this section for the attendance and examination of any person—

- (a) the Registrar shall take part in the examination and for that purpose may be represented by solicitor or counsel ;
- (b) the person examined shall answer all such questions as the court may put or allow to be put to him, but may at his own cost employ a solicitor with or without counsel, who shall be at liberty to put to him such questions as the court may deem just for the purpose of enabling him to explain or qualify any answers given by him ;
- (c) notes of the examination shall be taken down in writing and shall be read over to or by, and signed by, the person examined, and may thereafter be used in evidence against him ;
- (d) the court may require the person examined to produce any such particulars, documents or information in his possession or control as may be specified in the notice given by the Registrar as aforesaid.

(3) Where notice under section fourteen of this Act has been given to a body corporate, an order may be made under this section for the attendance and examination of any director, manager, secretary or other officer of that body corporate ; and in any such case—

- (a) the reference in subsection (1) of this section to matters in respect of which the Registrar has given notice to the person examined shall be construed as a reference to matters in respect of which notice was given to the body corporate ; and
- (b) in paragraph (d) of the last foregoing subsection, and in paragraph (c) so far as it relates to evidence, references to the person examined shall include references to the body corporate.

PART I
—cont.

(4) In the application of this section to Scotland and Northern Ireland respectively, for any reference to the High Court there shall be substituted a reference to the Court of Session or the High Court of Northern Ireland.

**Offences in
connection
with
registration.**

16.—(1) If any person fails without reasonable excuse to comply with a notice duly given to him under section fourteen of this Act, he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding one hundred pounds.

(2) If any person who furnishes or is required to furnish any particulars, documents or information under this Part of this Act,—

- (a) makes any statement, or furnishes any document, which he knows to be false in a material particular; or
- (b) recklessly makes any statement, or furnishes any document, which is false in a material particular; or
- (c) wilfully alters, suppresses or destroys any document which he is required to furnish as aforesaid,

he shall be guilty of an offence under this section, and shall be liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding one hundred pounds, or to both such imprisonment and such a fine, or on conviction on indictment to imprisonment for a term not exceeding two years or to a fine, or to both such imprisonment and a fine.

(3) If any default in respect of which a person is convicted of an offence under subsection (1) of this section continues after the conviction, that person shall be guilty of a further offence and liable on summary conviction to a fine not exceeding one hundred pounds, or not exceeding ten pounds for every day on which the default continues within the three months next following his conviction for the first-mentioned offence, whichever is the greater; and for the purposes of this subsection a default in respect of the furnishing of any particulars, documents or information shall be deemed to continue until the particulars, documents or information have been furnished.

(4) Where an offence under this section committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he as well as the body corporate shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

(5) In this section "director", in relation to a body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body corporate.

PART I
—*cont.*

17.—(1) No proceedings for an offence under this Part of this Act shall be instituted in England and Wales except by or with the consent of the Director of Public Prosecutions or the Registrar, and no such proceedings shall be instituted in Northern Ireland except by or with the consent of the Attorney General for Northern Ireland or the Registrar.

Commence-
ment of
proceedings
and venue.

(2) Notwithstanding anything in section one hundred and four of the Magistrates' Courts Act, 1952, or in any corresponding enactment relating to summary proceedings in Northern Ireland, an information relating to an offence under this Part of this Act may be tried by a magistrates' court or by a court of summary jurisdiction in Northern Ireland, if it is laid at any time within three years after the commission of the offence and within twelve months after the date on which evidence sufficient in the opinion of the Director of Public Prosecutions, the Attorney General for Northern Ireland or the Registrar, as the case may be, to justify the proceedings comes to his knowledge.

(3) Notwithstanding anything in section twenty-three of the Summary Jurisdiction (Scotland) Act, 1954, proceedings in Scotland for an offence against this Part of this Act may be commenced at any time within three years after the commission of the offence and within twelve months after the date on which evidence sufficient in the opinion of the Registrar to justify a report to the Lord Advocate with a view to consideration of the question of proceedings comes to the knowledge of the Registrar.

(4) For the purposes of subsections (2) and (3) of this section, a certificate of the Director of Public Prosecutions, the Attorney General for Northern Ireland or the Registrar, as the case may be, as to the date on which such evidence as aforesaid came to his knowledge shall be conclusive evidence.

(5) An offence under section sixteen of this Act may be tried by a court having jurisdiction either in the county or place in which the offence was actually committed or in any county or place in which the alleged offender carries on business.

18.—(1) If the High Court is satisfied, upon application made by the Registrar, that default has been made in furnishing particulars under section ten of this Act of an agreement which is subject to registration under this Part of this Act, or of any

Powers of
High Court
in case of
default in
furnishing
particulars.

PART I
—cont.

variation or determination of such an agreement, the High Court may—

- (a) in any case, authorise the Registrar to treat as particulars duly furnished under the said section ten any document or information in his possession relating to the agreement;
- (b) if the application is made against any person party to the agreement, order that person to furnish those particulars to the Registrar within such time as may be specified in the order.

(2) In any case where an application under the foregoing subsection is made against any person party to an agreement, and the court is satisfied that the failure of that person to furnish particulars in respect of the agreement was wilful, the court may, in addition to or in lieu of making an order giving an authorisation under that subsection, make against that person any such order as could be made by the Restrictive Practices Court under subsection (3) of section twenty of this Act if all restrictions by virtue of which this Part of this Act applies to the agreement were found by that Court to be contrary to the public interest.

(3) An order made by the High Court under the last foregoing subsection may be discharged by the Restrictive Practices Court upon application made under section twenty of this Act, and shall continue in force until so discharged.

(4) In the application of this section to Scotland and Northern Ireland respectively, for any reference to the High Court there shall be substituted a reference to the Court of Session or the High Court of Northern Ireland.

**Regulations
for purposes
of registration.**

19.—(1) Subject to the foregoing provisions of this Act, the Registrar may make regulations for purposes of registration under this Part of this Act and for purposes connected therewith, and in particular, but without prejudice to the generality of the foregoing provision—

- (a) for regulating the procedure to be followed in connection with the furnishing of particulars, information and documents under sections ten and fourteen of this Act;
- (b) for excluding from the particulars to be furnished or entered in the register under this Part of this Act such details as to persons, prices, terms or other matters as are material for the purpose only of defining the particular application from time to time of continuing restrictions accepted under agreements of which particulars are so entered;
- (c) for prescribing the form of any notice, certificate or other document to be given, made or furnished under the foregoing provisions of this Part of this Act;

(d) for regulating the inspection of the register or of any document kept by the Registrar ;

(e) for prescribing anything authorised or required by this Part of this Act to be prescribed by regulations made under this section.

(2) Any such regulations prescribing a fee for inspection of the register or for the supply of copies of or extracts from particulars entered or filed therein, shall be made with the approval of the Treasury.

(3) The power of the Registrar to make regulations under this section shall be exercisable by statutory instrument, and the Statutory Instruments Act, 1946, shall apply to such regulations as it applies to regulations made by a Minister of the Crown within the meaning of that Act.

(4) Any statutory instrument containing regulations made under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Judicial investigation of registered Agreements

20.—(1) The Court shall have jurisdiction, on application made in accordance with this section in respect of any agreement of which particulars are for the time being registered under this Part of this Act, to declare whether or not any restrictions by virtue of which this Part of this Act applies to the agreement (other than restrictions in respect of matters described in paragraphs (b) to (d) of subsection (8) of section eight of this Act) are contrary to the public interest.

Jurisdiction
and powers
of Restrictive
Practices
Court.

(2) An application to the Court under the foregoing subsection may be made—

(a) in any case, by the Registrar ;

(b) in a case where an order in respect of the agreement is in force against any person under subsection (2) of section eighteen of this Act, by that person :

Provided that no such application shall be made by virtue of paragraph (b) of this subsection until after the expiration of the period of two years beginning with the date on which the order under the said subsection (2) was made.

(3) Where any such restrictions are found by the Court to be contrary to the public interest, the agreement shall be void in respect of those restrictions ; and without prejudice to the foregoing provision the Court may, upon the application of the Registrar, make such order as appears to the Court to be proper

PART I
—cont.

for restraining all or any of the persons party to the agreement who carry on business in the United Kingdom—

- (a) from giving effect to, or enforcing or purporting to enforce, the agreement in respect of those restrictions ;
- (b) from making any other agreement (whether with the same parties or with other parties) to the like effect.

(4) Where any restrictions accepted under a term implied by virtue of subsection (7) of section six of this Act in an agreement for the constitution of a trade association are found by the Court to be contrary to the public interest, the Court may, without prejudice to its powers under the last foregoing subsection, make such order as appears to the Court to be proper for restraining the association or any person acting on its behalf from making any recommendation to which that term would apply.

(5) The powers of the Court under this section shall not be affected by the determination of an agreement effected after the commencement of the proceedings, and where an agreement is varied after the commencement of the proceedings, the Court may make a declaration and, if it thinks fit an order under subsection (3) or subsection (4) of this section, either in respect of the agreement as at the commencement of the proceedings or in respect of the agreement as varied, or both.

(6) The Registrar shall cause notice of any declaration or order made under this section to be entered in the register.

**Presumption
as to the
public interest.**

21.—(1) For the purposes of any proceedings before the Court under the last foregoing section, a restriction accepted in pursuance of any agreement shall be deemed to be contrary to the public interest unless the Court is satisfied of any one or more of the following circumstances, that is to say—

- (a) that the restriction is reasonably necessary, having regard to the character of the goods to which it applies, to protect the public against injury (whether to persons or to premises) in connection with the consumption, installation or use of those goods ;
- (b) that the removal of the restriction would deny to the public as purchasers, consumers or users of any goods other specific and substantial benefits or advantages enjoyed or likely to be enjoyed by them as such, whether by virtue of the restriction itself or of any arrangements or operations resulting therefrom ;
- (c) that the restriction is reasonably necessary to counteract measures taken by any one person not party to the agreement with a view to preventing or restricting competition in or in relation to the trade or business in which the persons party thereto are engaged ;

- (d) that the restriction is reasonably necessary to enable the persons party to the agreement to negotiate fair terms for the supply of goods to, or the acquisition of goods from, any one person not party thereto who controls a preponderant part of the trade or business of acquiring or supplying such goods, or for the supply of goods to any person not party to the agreement and not carrying on such a trade or business who, either alone or in combination with any other such person, controls a preponderant part of the market for such goods ;
- (e) that, having regard to the conditions actually obtaining or reasonably foreseen at the time of the application, the removal of the restriction would be likely to have a serious and persistent adverse effect on the general level of unemployment in an area, or in areas taken together, in which a substantial proportion of the trade or industry to which the agreement relates is situated ;
- (f) that, having regard to the conditions actually obtaining or reasonably foreseen at the time of the application, the removal of the restriction would be likely to cause a reduction in the volume or earnings of the export business which is substantial either in relation to the whole export business of the United Kingdom or in relation to the whole business (including export business) of the said trade or industry ; or
- (g) that the restriction is reasonably required for purposes connected with the maintenance of any other restriction accepted by the parties, whether under the same agreement or under any other agreement between them, being a restriction which is found by the Court not to be contrary to the public interest upon grounds other than those specified in this paragraph, or has been so found in previous proceedings before the Court,

and is further satisfied (in any such case) that the restriction is not unreasonable having regard to the balance between those circumstances and any detriment to the public or to persons not parties to the agreement (being purchasers, consumers or users of goods produced or sold by such parties, or persons engaged or seeking to become engaged in the trade or business of selling such goods or of producing or selling similar goods) resulting or likely to result from the operation of the restriction.

(2) In this section "purchasers", "consumers" and "users" include persons purchasing, consuming or using for the purpose or in course of trade or business or for public purposes ; and references in this section to any one person include references to any two or more persons being inter-connected bodies corporate or individuals carrying on business in partnership with each other.

PART I
—cont.

Variation of
decisions of
the Court.

22.—(1) The Court may, upon application made in accordance with this section, discharge any previous declaration of the Court in respect of any restriction and any order made by the Court in pursuance thereof and substitute such other declaration, and make such order in pursuance thereof, as appears to the Court to be proper at the time of the hearing of the application.

(2) The provisions of section twenty-one of this Act shall apply with the necessary modifications in relation to proceedings on an application under this section as they apply in relation to the proceedings therein mentioned.

(3) An application under this section may be made by the Registrar or by any person who is, or was at the time of the previous determination of the Court, subject to or entitled to the benefit of the restriction in question.

(4) No application shall be made under this section except with the leave of the Court, and such leave shall not be granted except upon *prima facie* evidence of a material change in the relevant circumstances.

Rules of
procedure
and
representation
of Registrar.

23.—(1) Subject to the foregoing provisions of this Part of this Act and to the provisions of the Schedule to this Act, the procedure in or in connection with any proceedings before the Court, and, subject to the approval of the Treasury, the fees chargeable in respect of such proceedings, shall be such as may be determined by rules made by the Lord Chancellor.

(2) Without prejudice to the generality of the foregoing provision, rules made under this section may make provision with respect to the persons to be made respondents to any application to the Court under this Part of this Act, the place at which the Court is to sit for the purposes of any proceedings thereunder, and the evidence which may be required or admitted in any such proceedings; and such rules may provide—

- (a) for securing, by means of preliminary statements of facts and contentions, and by the production of documents, the administration of interrogatories and other methods of discovery, that all material facts and considerations are brought before the Court by all parties to any proceedings, including the Registrar;
- (b) for enabling a single application to be made to the Court in respect of a number of related agreements, or separate applications made in respect of related agreements to be heard together;
- (c) for enabling the Court to determine in a summary way any issue arising in relation to an agreement where it appears to the Court that the relevant provisions of the

agreement and the circumstances of the case are substantially similar to the provisions and circumstances considered, in relation to any other agreement, in any previous proceedings before the Court ;

PART I
—cont.

- (d) for enabling the Court to make an order for the payment by any party of costs in respect of proceedings in which he is guilty of unreasonable delay, or in respect of any improper, vexatious, prolix or unnecessary proceedings or any other unreasonable conduct on his part.

(3) The power of the Lord Chancellor to make rules under this section shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) In any proceedings before the Court under this Part of this Act in which the Registrar is represented by counsel, counsel for the Registrar shall be nominated by the Attorney General, the Lord Advocate or the Attorney General for Northern Ireland, as the case may be.

PART II

ENFORCEMENT OF CONDITIONS AS TO RESALE PRICES

24.—(1) Subject to the provisions of this section, it shall be unlawful for any two or more persons carrying on business in the United Kingdom as suppliers of any goods to make or carry out any agreement or arrangement by which they undertake—

Prohibition of agreements for collective enforcement of conditions as to resale prices.

- (a) to withhold supplies of goods for delivery in the United Kingdom from dealers (whether party to the agreement or arrangement or not) who resell or have resold goods in breach of any condition as to the price at which those goods may be resold ;
- (b) to refuse to supply goods for delivery in the United Kingdom to such dealers except on terms and conditions which are less favourable than those applicable in the case of other dealers carrying on business in similar circumstances ; or
- (c) to supply goods only to persons who undertake or have undertaken to withhold supplies of goods, or to refuse to supply goods, as aforesaid,

or any agreement or arrangement authorising the recovery of penalties (however described) by or on behalf of the parties to the agreement from dealers who resell or have resold goods in breach of any such condition as is described in paragraph (a) of this subsection, or the conduct of any domestic proceedings in connection therewith.

PART II
—cont.

(2) Subject to the provisions of this section, it shall be unlawful for any two or more persons carrying on business in the United Kingdom as dealers in any goods to make or carry out any agreement or arrangement by which they undertake—

- (a) to withhold orders for supplies of goods for delivery in the United Kingdom from suppliers (whether party to the agreement or arrangement or not) who supply or have supplied goods otherwise than subject to such a condition as aforesaid, or who refrain or have refrained from taking steps to ensure compliance with such conditions in respect of goods supplied by them; or
- (b) to discriminate in their handling of goods against goods supplied by such suppliers,

or any agreement or arrangement authorising the recovery of penalties (however described) by or on behalf of the parties to the agreement or arrangement from such suppliers, or the conduct of any domestic proceedings in connection therewith.

(3) A contract for the sale of goods to which not more than two persons are party shall not be unlawful under this section by reason only of undertakings by the purchaser in relation to the goods sold and by the vendor in relation to other goods of the same description.

(4) Subject to the provisions of this section, it shall be unlawful for any person carrying on business in the United Kingdom as a supplier of or dealer in any goods to make to any other person carrying on business as aforesaid any recommendation to act in such a manner that, if there were an agreement between those persons so to act, the agreement would be unlawful by virtue of the foregoing provisions of this section.

(5) This section applies in relation to an association the members of which consist of or include persons carrying on business in the United Kingdom as suppliers of or dealers in any goods, or representatives of such persons, as it applies in relation to a person so carrying on business.

(6) No criminal proceedings shall lie against any person on the ground that he has committed, or aided, abetted, counselled or procured the commission of, or conspired or attempted to commit, or incited others to commit, any contravention of this section.

(7) Without prejudice to the right of any person to bring civil proceedings in respect of any contravention or apprehended contravention of this section, compliance with this section shall be enforceable by civil proceedings on behalf of the Crown for an injunction or other appropriate relief.

(8) Section four of the Trade Disputes Act, 1906 (which prohibits actions of tort against trade unions) shall not apply to proceedings under this section.

PART II
—cont.

25.—(1) Where goods are sold by a supplier subject to a condition as to the price at which those goods may be resold, either generally or by or to a specified class or person, that condition may, subject to the provisions of this section, be enforced by the supplier against any person not party to the sale who subsequently acquires the goods with notice of the condition as if he had been party thereto.

Individual enforcement by legal proceedings of conditions as to resale prices.

(2) A condition shall not be enforceable by virtue of this section—

- (a) in respect of the resale of any goods by a person who acquires those goods otherwise than for the purpose of resale in the course of business, or by any person who acquires them, whether immediately or not, from such a person ;
- (b) in respect of the resale of any goods pursuant to an order of any court, or by way of execution or distress, or by any person who acquires them, whether immediately or not, after such resale.

(3) Nothing in this section shall be construed as enabling any person to enforce a condition imposed in pursuance of any restriction which is declared by an order of the Restrictive Practices Court for the time being in force under Part I of this Act to be contrary to the public interest.

(4) Without prejudice to any other relief which may be granted in proceedings against any person in respect of a breach or apprehended breach of a condition which is enforceable against him by virtue of this section, the court may, if it thinks fit, upon proof that goods sold by the plaintiff have been resold by the defendant in breach of any such condition, grant an injunction restraining the defendant from reselling in breach of any such condition any goods already sold or thereafter to be sold by the plaintiff, whether of the same description as the goods proved to have been resold as aforesaid or of any other description.

26.—(1) For the purposes of this Part of this Act a condition as to the amount of discount which may be allowed on the resale of any goods, or as to the price which may be paid on the resale of any goods for other goods taken by way of exchange, shall be treated as a condition as to the price at which goods may be resold.

Supplementary provisions.

(2) For the purposes of any provision of this Part of this Act referring to two or more or not more than two persons, two or more persons being inter-connected bodies corporate or individuals carrying on business in partnership with each other shall be treated as a single person.

PART II
—*cont.*

(3) In this Part of this Act any reference to selling goods includes a reference to letting goods under a hire-purchase agreement within the meaning of section twenty-one of the Hire-Purchase Act, 1938.

(4) In the application of this Part of this Act to Scotland, for references to the plaintiff, the defendant and an injunction, there shall be substituted references respectively to the pursuer, the defender and an interdict; and for the reference to a hire-purchase agreement within the meaning of section twenty-one of the Hire-Purchase Act, 1938, there shall be substituted a reference to a contract to which the Hire-Purchase and Small Debt (Scotland) Act, 1932, applies, or would apply if the limitation as to value contained in section one of that Act were omitted.

(5) In the application of this section to Northern Ireland, for the reference to section twenty-one of the Hire-Purchase Act, 1938, there shall be substituted a reference to any corresponding enactment for the time being in force in Northern Ireland.

**Commence-
ment of
Part II.**

27. This Part of this Act shall come into force on the expiration of the period of three months beginning with the date of the passing of this Act.

PART III**AMENDMENTS OF MONOPOLIES AND RESTRICTIVE
PRACTICES ACTS, 1948 AND 1953, ETC.****Reconstitution
of Monopolies
Commission.**

28.—(1) As from the date on which this section comes into force, the Monopolies and Restrictive Practices Commission established under the Monopolies and Restrictive Practices (Inquiry and Control) Act, 1948 (in this Part of this Act referred to as “the Act of 1948”) shall be known as the Monopolies Commission, and every member of that Commission holding office on that date shall cease to hold office.

(2) Notwithstanding anything in subsection (3) of section one of the Act of 1948 (which prohibits the re-appointment of members of the Commission other than the chairman and deputy chairmen) any member of the said Commission who ceases to hold office by virtue of this section shall be eligible for re-appointment; but the said subsection (3) shall have effect in relation to the period for which a member who is re-appointed may hold office, and the period to which the term of office of such a member may be extended, as if that member had not ceased to hold office as aforesaid.

(3) The maximum number of members of the said Commission who may be appointed under subsection (2) of section one of the Act of 1948 (which provides that the Commission

shall consist of not more than twenty-five members) shall be reduced to ten; and accordingly in the said subsection (2) for the words "twenty-five" there shall be substituted the word "ten".

PART III
—cont.

(4) The functions of the said Commission shall cease to be exercisable by separate groups of members, and accordingly section two of the Monopolies and Restrictive Practices Commission Act, 1953 (in this section referred to as "the Act of 1953") and the Second Schedule to that Act (which make provision for the exercise of functions of the said Commission by groups of members working at the same time) are hereby repealed.

(5) The power of the Board of Trade under section one of the Act of 1953 to appoint deputy chairmen of the said Commission shall cease to be exercisable; and accordingly subsection (3) of the said section one is hereby repealed, and the said section and the First Schedule to the Act of 1953, shall have effect as if every reference therein to a deputy chairman were omitted.

(6) This section shall come into force on such date as may be appointed by order made by the Board of Trade by statutory instrument.

29.—(1) For the purposes of any reference made to the Monopolies Commission after the commencement of this Act under section two of the Act of 1948, conditions to which that Act applies shall not be deemed to prevail as respects the supply of goods of any description, the application of any process to goods of any description or the export of goods of any description, by reason of any agreement to which Part I of this Act applies; and the Commission shall not be required in pursuance of any such reference to report whether any such agreement to which the parties concerned are party operates or may be expected to operate as such against the public interest.

Future scope
of references
to Monopolies
Commission.

(2) In relation to any such reference as aforesaid, subsection (1) of section five of that Act (which provides that such conditions shall be deemed to prevail as respects exports of goods if any one person produces at least one-third of all the goods produced in the United Kingdom) shall have effect as if after the words "any one person" there were inserted the words "or any two or more persons being inter-connected bodies corporate".

(3) Except so far as the Board of Trade may otherwise direct in any particular case, any reference or requirement to report made to the said Commission under the Act of 1948 before the commencement of this Act, in respect of which the Commission have not made a final report to the Board, shall lapse at

PART III
—cont.

the expiration of the period of one month beginning with the date of the commencement of this Act, and any proceedings of the Commission thereunder shall be discontinued accordingly.

(4) The power of the Board of Trade to give directions under subsection (3) of this section in respect of a reference made before the commencement of this Act shall include power to require the Commission to proceed with the reference as if it had been made after the commencement of this Act; and the proviso to subsection (4) of section six of the Act of 1948 (which restricts the powers of the Board of Trade to vary references made to the Commission under that Act) shall not apply in relation to any such reference in respect of which directions are given by the Board under subsection (3) of this section.

(5) The proviso to subsection (1) of section fifteen of the Act of 1948 (which restricts the power of the Board to require the Commission to report on general questions) shall cease to have effect.

Provisions as
to orders of
competent
authorities
under s. 10
of Act of
1948.

30.—(1) Except as provided by this section, no order shall be made after the commencement of this Act under section ten of the Act of 1948—

- (a) declaring unlawful the making or carrying out of any agreement which, if in force, would be an agreement to which Part I of this Act applies; or
- (b) requiring the determination of any agreement to which the said Part I applies.

(2) The Restrictive Practices Court may, upon application made by any person who desires to make any agreement which, if made, would be an agreement to which Part I of this Act applies, being an agreement the making of which is unlawful by virtue of any order in force under the said section ten, declare whether or not any restrictions by virtue of which the said Part I would apply to the agreement (not being such restrictions as are described in paragraphs (b) to (d) of subsection (8) of section eight of this Act) are contrary to the public interest.

(3) Where the Restrictive Practices Court makes a declaration under the last foregoing subsection in relation to a restriction proposed to be accepted under any agreement, any order in force under the said section ten shall cease to have effect in so far as it renders unlawful the making or carrying out of an agreement under which that restriction is accepted; and the provisions of subsection (3) of section twenty of this Act shall apply with the necessary modifications in relation to any such declaration as aforesaid as they apply in relation to a finding under that section.

(4) Where, before the commencement of this Act, any undertaking or assurance has been given by any person to a competent authority within the meaning of the said section ten that any agreement (being an agreement to which Part I of this Act applies or would apply if the agreement were in force) will be determined, or will not be made—

(a) the provisions of subsections (2) and (3) of this section shall apply in relation to the undertaking or assurance as if it were an order under the said section ten; and

(b) subject to the said provisions, an order under the said section ten may, if the undertaking or assurance is not complied with, be made to the like effect as the undertaking or assurance.

(5) The Registrar shall be the respondent to any application made under this section; and the provisions of section twenty-one of this Act shall apply with the necessary modifications in relation to proceedings on any such application as they apply in relation to the proceedings therein mentioned.

(6) Except with the consent of the Board of Trade, no application shall be made under this section until the expiration of the period of four years beginning with the date of the commencement of this Act.

(7) Subsection (6) of section ten of the Act of 1948 (which provides for the revocation or variation of orders under that section) shall not apply to any order made under that section before the commencement of this Act.

31.—(1) Where, apart from subsection (8) of section eight of this Act, particulars would be required to be furnished to the Registrar under section ten of this Act in respect of any agreement or term of an agreement which relates to the supply of goods by export from the United Kingdom, the like particulars shall be furnished to the Board of Trade, and sections ten, fourteen, sixteen and seventeen of this Act shall apply accordingly as if for any reference in the said sections ten, fourteen and seventeen to the Registrar there were substituted a reference to the Board of Trade.

Provisions
relating to
export
agreements.

(2) Notwithstanding anything in section nine of the Monopolies and Restrictive Practices (Inquiry and Control) Act, 1948, the Board of Trade shall not be required to lay before Parliament any report made to them by the Monopolies Commission which relates exclusively to exports of goods from the United Kingdom, or any part of a report so made which relates exclusively to such exports:

Provided that where, according to any such report, conditions to which that Act applies in fact prevail as respects those

PART III
—cont.

exports, and those conditions, or things done as a result of, or for the purpose of preserving, those conditions, operate or may be expected to operate against the public interest, this subsection shall not apply to so much of the report as relates to those conditions or to the things done as aforesaid.

PART IV**SUPPLEMENTAL****Provision for
additional
judges of High
Court and
Court of
Session.**

32.—(1) The number of puisne judges of the High Court who may be appointed under the Supreme Court of Judicature (Consolidation) Act, 1925, shall be increased by three; and accordingly subsection (1) of section two of the said Act of 1925, and subsections (1) and (2) of section one of the Supreme Court of Judicature (Amendment) Act, 1944, shall have effect as if for the word “thirty-nine” wherever that word occurs, there were substituted the word “forty-two”.

(2) The number of judges of the Court of Session who may be appointed shall be increased to sixteen, and accordingly subsection (1) of section one of the Administration of Justice (Scotland) Act, 1948, shall have effect as if for the word “fifteen” there were substituted the word “sixteen”.

**Restriction on
disclosure of
information.**

33.—(1) No information with respect to any particular trade or business which has been obtained under or by virtue of this Act shall, so long as that trade or business continues to be carried on, be disclosed without the consent of the person for the time being carrying on that trade or business, unless the disclosure is for the purpose of facilitating the performance of any functions of the Board of Trade or the Registrar under this Act, or under the Monopolies and Restrictive Practices (Inquiry and Control) Act, 1948, or for the purposes of, or of any report of, any proceedings before the Restrictive Practices Court or any other legal proceedings, whether civil or criminal, under this Act or arising out of the carrying of this Act into effect.

(2) Nothing in this section shall be construed as limiting the particulars which may be entered or filed in, or may be made public as part of, the register under Part I of this Act.

(3) Any person who discloses any information in contravention of this section shall be guilty of an offence, and shall be liable on summary conviction to imprisonment for a term not exceeding three months, or to a fine not exceeding one hundred pounds or to both such imprisonment and such a fine, or on conviction on indictment to imprisonment for a term not exceeding two years or to a fine, or to both such imprisonment and a fine.

34. Anything required or authorised by or under this Act to be done by, to or before the Board of Trade may be done by, to or before the President of the Board, any Minister of State with duties concerning the affairs of the Board, any Secretary, Under-Secretary, or Assistant Secretary of the Board, or any person authorised in that behalf by the President.

PART IV
—cont.

Proceedings
of Board
of Trade.

35.—(1) There shall be defrayed out of moneys provided by Parliament— Expenses, etc.

- (a) any sums required for the payment of remuneration or expenses of the Registrar (including remuneration payable to Assistant Registrars or other officers or servants of the Registrar) ;
- (b) any sums required for the payment of the remuneration of appointed members of the Restrictive Practices Court or of expenses of that Court (including remuneration of officers and servants of the Court) ;
- (c) any sums required for the payment of pensions, allowances or gratuities, or contributions or other payments towards provision for pensions, allowances or gratuities, in respect of persons who have held office as Registrar or as appointed member of the said Court ;
- (d) any increase attributable to this Act in the sums payable out of moneys provided as aforesaid under the Superannuation Acts, 1834 to 1950.

(2) There shall be defrayed out of the Consolidated Fund and out of moneys provided by Parliament respectively any increase attributable to section thirty-two of this Act in the sums required to be so defrayed.

(3) Any fees received by the Registrar under this Act shall be paid into the Exchequer.

36.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:— Interpretation.

- “enactment” includes an enactment of the Parliament of Northern Ireland ;
- “goods” includes ships and aircraft, minerals, substances and animals (including fish), and references to the production of goods include references to the getting of minerals and the taking of such animals ;
- “inter-connected bodies corporate” means bodies corporate which are members of the same group, and for the purposes of this definition “group” means a body corporate and all other bodies corporate which are its subsidiaries within the meaning of section one hundred and fifty-four of the Companies Act, 1948 ;

PART IV
—cont.

“price” includes a charge of any description ;

“the Registrar” has the meaning assigned by section one of this Act ;

“supply” includes supply by way of lease or hire, and
“acquire” shall be construed accordingly.

(2) This Act applies to the construction or carrying out of buildings, structures and other works by contractors, as it applies to the supply of goods, and for the purposes of this Act any buildings, structures or other works so constructed or carried out shall be deemed to be delivered at the place where they are constructed or carried out.

(3) For the purposes of this Act a person shall not be deemed to carry on a business within the United Kingdom by reason only of the fact that he is represented for the purposes of that business by an agent within the United Kingdom.

(4) Any reference in this Act to any other enactment is a reference thereto as amended, and includes a reference thereto as extended or applied, by or under any subsequent enactment, including this Act.

**Application
to Northern
Ireland.**

37.—(1) It is hereby declared that this Act extends to Northern Ireland, but the Parliament of Northern Ireland shall have the same power to pass Acts with respect to any matter as they would have had if this Act had not passed and, in the event of any inconsistency between any Act of the Parliament of Northern Ireland duly passed after the passing of this Act and any provision of or any order or other instrument under this Act, the Act of the Parliament of Northern Ireland shall, in Northern Ireland, prevail.

(2) In the application of this Act to Northern Ireland “summary conviction” means conviction in accordance with the enactments (including enactments of the Parliament of Northern Ireland) for the time being in force in Northern Ireland relating to summary jurisdiction.

Short title.

38. This Act may be cited as the Restrictive Trade Practices Act, 1956.

SCHEDULE

Sections 2, 23.

SUPPLEMENTARY PROVISIONS AS TO PROCEEDINGS OF
RESTRICTIVE PRACTICES COURT

1. Subject to rules made under section twenty-three of this Act, the Court may sit at such times and in such place or places in any part of the United Kingdom as may be most convenient for the determination of proceedings before it.

2. The central office of the Court shall be in London ; and the Court when sitting in public in London shall sit at the Royal Courts of Justice, or at such other place as the Lord Chancellor may from time to time appoint.

3. The Court may sit either as a single court or in two or more divisions concurrently and either in private or in open court.

4. For the hearing of any proceedings the Court shall consist of a presiding judge and at least two other members.

5. On the hearing of any proceedings, the opinion of the judge or judges sitting as members of the Court upon any question of law shall prevail ; but except as aforesaid the decision of the Court shall be taken by all the members sitting, or, in the event of a difference of opinion by the votes of the majority of those members, and, in the event of an equality of votes, the presiding judge shall be entitled to a second or casting vote.

6. The judgment of the Court in any proceedings shall be delivered by the presiding judge.

7. The decision of the Court on a question of fact shall be final : but an appeal shall lie on any question of law from any decision or order of the Court—

(a) in the case of proceedings in England and Wales, to the Court of Appeal ;

(b) in the case of proceedings in Scotland, to the Court of Session ;

(c) in the case of proceedings in Northern Ireland, to the Court of Appeal in Northern Ireland.

8. Any appeal under the last foregoing paragraph to the Court of Appeal or the Court of Appeal in Northern Ireland shall be by way of case stated, and any such appeal to the Court of Session shall be by way of stated case.

9. Except so far as may be provided by rules made in pursuance of paragraph (d) of subsection (2) of section twenty-three of this Act, the Court shall not have power to order the payment of costs by any party to proceedings before it.

10. In relation to the attendance and examination of witnesses, the production and inspection of documents, the enforcement of its orders, and all other matters incidental to its jurisdiction under this

SCH.
—cont.

Act, the Court shall, subject to the provisions of this Schedule, have the like powers, rights, privileges and authority—

- (a) in England and Wales, as the High Court ;
- (b) in Scotland, as the Court of Session ;
- (c) in Northern Ireland, as the High Court of Northern Ireland.

11. Every person who has the right of audience at the trial of an action in the High Court or in the Court of Session, or in proceedings preliminary to such a trial, shall have the like right at the hearing of any application to the Court, whether sitting in England and Wales or in Scotland, or in proceedings preliminary to such a hearing, as the case may be ; and every person who has the right of audience at the trial of an action in the High Court of Northern Ireland, or in proceedings preliminary to such a trial, shall have the like right at the hearing of any application to the Court when sitting in Northern Ireland, or in proceedings preliminary to such a hearing, as the case may be.

12. No person shall be punished for contempt of the Court except by or with the consent of a judge who is a member of the Court.

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Documentary Evidence Act, 1868	31 & 32 Vict. c. 37.
Trade Disputes Act, 1906	6 Edw. 7. c. 47.
Industrial Courts Act, 1919	9 & 10 Geo. 5. c. 69.
Supreme Court of Judicature (Consolidation) Act, 1925.	15 & 16 Geo. 5. c. 49.
Hire-Purchase and Small Debt (Scotland) Act, 1932.	22 & 23 Geo. 5. c. 38.
Trade Marks Act, 1938	1 & 2 Geo. 6. c. 22.
Hire-Purchase Act, 1938	1 & 2 Geo. 6. c. 53.
Supreme Court of Judicature (Amendment) Act, 1944.	7 & 8 Geo. 6. c. 9.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
Monopolies and Restrictive Practices (Inquiry and Control) Act, 1948.	11 & 12 Geo. 6. c. 66.
Administration of Justice (Scotland) Act, 1948	12, 13 & 14 Geo. 6. c. 10.
Income Tax Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 10.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.
Iron and Steel Act, 1953	1 & 2 Eliz. 2. c. 15.
Monopolies and Restrictive Practices Commission Act, 1953.	1 & 2 Eliz. 2. c. 51.
Summary Jurisdiction (Scotland) Act, 1954 ...	2 & 3 Eliz. 2. c. 48.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 1s. 6d. net

(37737)

PRINTED IN GREAT BRITAIN